

Vijay Shankar Chauhan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 June 2021 · WRIT - C No. 8771 of 2021 · **Writ disposed; petitioner relegated to clause 6.5 of the Supply Code, 2005.**

HEADNOTE

Mandamus to recalculate a disputed electricity bill, furnish an OTS statement, and restrain coercive recovery was declined. The Division Bench held that clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 furnishes an efficacious alternative statutory remedy for disputed bills and arrears. The petitioner was left free to raise a clause 6.5 dispute within 30 days, to be decided on merits by a speaking order within three months.

FACTUAL SUMMARY

The petitioner sought a writ of mandamus directing the distribution licensee to recalculate the electricity bill of connection No. 062520 (Ata Chakki), standing in his father's name, by admitting payments deposited till January 2014, to furnish a statement of dues under the One Time Settlement scheme, and to restrain coercive recovery of the claimed arrears. The petition was heard by video conferencing. Counsel appeared for the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bills and arrears — alternative statutory remedy

HOLDING

A consumer seeking recalculation of a disputed electricity bill, an OTS statement of dues, and restraint of coercive recovery has an efficacious alternative statutory remedy under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005; the writ court will not interfere. If the consumer raises a clause 6.5 dispute within 30 days, the competent authority shall decide it on merits by a speaking order within three months. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench declined a mandamus for bill recalculation, OTS statement, and restraint of coercive recovery because clause 6.5 supplies an efficacious alternative statutory remedy for disputed bills and arrears. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The petitioner's grievance was a disputed electricity bill and arrears; the Court quoted clause 6.5 in full and remitted him to that statutory route, with a 30-day window to raise the dispute and three months for a speaking order on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL OF CONNECTION NO. 062520 REQUIRED RECALCULATION, CREDIT FOR PAYMENTS TILL JANUARY 2014, OR AN OTS STATEMENT, AND WHETHER COERCIVE RECOVERY SHOULD BE RESTRAINED

Merits of the billing dispute left to the clause 6.5 authority if a dispute is raised within 30 days. ¶ 1